

**SUBSTITUTE FOR
HOUSE BILL NO. 6007**

A bill to amend 2000 PA 92, entitled
"Food law,"
by amending sections 3105, 3113, 3129, 3139, 4101, 4105, 5101, and
6103 (MCL 289.3105, 289.3113, 289.3129, 289.3139, 289.4101,
289.4105, 289.5101, and 289.6103), sections 3105 and 5101 as
amended by 2012 PA 178, section 3113 as amended by 2016 PA 188,
section 3139 as amended by 2007 PA 113, section 4101 as amended by
2010 PA 112, and section 4105 as amended by 2025 PA 43.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 3105. (1) The department shall delegate the authority and
2 responsibility for the enforcement of the requirements pertaining
3 to food service establishments contained in this act and rules to
4 local health departments ~~meeting~~**that meet** the program criteria



provided for in this act and rules. The local health departments shall enforce this act and rules and may delegate enforcement authority under a plan of organization approved ~~pursuant to~~ **under** section 2431 of the public health code, MCL 333.2431. If a food service program is discontinued or is revoked for failure to meet the program criteria, redelegation to a local health department by the director of the program is not required. Local health departments delegated authority under this chapter shall enforce this act and rules in the manner provided for in part 24 of the public health code, MCL 333.2401 to 333.2498, except that late fees under section 4113, administrative fines under section 5105, and criminal fines under section 5107 are specifically not delegated to the local health departments.

(2) If a food service establishment is a part of a retail grocery or food processor and the retail grocery ~~and or~~ food processor ~~are~~ **is** the predominant part of the food business as determined by the department, authority and responsibility pertaining to ~~that~~ **the food service** establishment are not delegated under subsection (1).

(3) ~~If~~ **Except as provided under subsection (5), if** a retail grocery or food processor is a part of a food service establishment but the food service establishment is the predominant part of the food business as determined by the department, the authority and responsibility for the entire establishment are delegated under subsection (1).

(4) Mobile and temporary food establishments and special transitory food units that are predominantly food service establishments as determined by the department are delegated to the local health departments under subsection (1). Mobile and temporary



1 food establishments and special transitory food units that are
2 predominantly retail groceries or food processors are not delegated
3 under subsection (1).

4 **(5) If a food processor is part of a food service**
5 **establishment as described in subsection (3) and processes for**
6 **wholesale low acid canned food, acidified food, juice, seafood,**
7 **fermented foods other than alcohol, or aseptic-processed foods, or**
8 **performs a process determined by the department to be complex,**
9 **authority and responsibility may be transferred from the local**
10 **health department back to the department for activities related to**
11 **processing the food for wholesale.**

12 Sec. 3113. **(1)** A county, city, village, or township shall not
13 regulate those aspects of food service establishments that are
14 subject to regulation under this act except to the extent necessary
15 to carry out the responsibility of a local health department to
16 implement **the** licensing provisions ~~of~~**under** chapter IV. This
17 chapter does not relieve the applicant for a license or a licensee
18 from responsibility for securing a local permit or complying with
19 applicable local codes, regulations, or ordinances not in conflict
20 with this act.

21 **(2) A county, city, village, or township shall not require a**
22 **license, permit, or registration for, or otherwise regulate, a**
23 **temporary food establishment that meets the requirements of section**
24 **4105(1)(g) .**

25 Sec. 3129. (1) A local health department shall investigate an
26 allegation of foodborne diseases and poisonings ~~or suspected~~
27 ~~foodborne diseases and poisonings~~ connected with food service
28 establishments within its jurisdiction and ~~delegated authority and~~
29 ~~shall~~ promptly make a report of its findings to the department.



(2) If an investigation indicates that ~~a source of a~~ **an alleged** foodborne disease or poisoning was from a food processing, food storage, or similar type of food establishment over which the department has legal jurisdiction or responsibility, the local health department shall immediately notify the ~~director~~ **department** while the local health department is completing the investigation. **If the department is notified under this subsection, the department shall provide a report of its response and findings to the local health department.**

Sec. 3139. (1) If a certified health department fails to meet the requirements established in this act or rules, ~~promulgated under this act,~~ **the department may revoke the certified health department's certification and delegated authority after providing not less than 120 days'** written notice. ~~of deficiencies shall be furnished to the health officer of that certified health department within 30 days after completion of the review under section 3137. This notice shall offer an opportunity to the health officer of the certified health department for a hearing with the director. If a hearing is not requested, certification issued under this chapter shall be revoked within 30 days following the notice to the health officer of the certified health department. If a hearing is held and deficiencies are not corrected within the time period specified in the hearing, certification shall be revoked within the time period specified in the hearing.~~

~~(2) If requested by the health officer of the certified health department in a written notice to the director, certification issued under this chapter shall be revoked within 30 days of receipt of the written notice.~~

(2) (3) Revocation of a certified health department's



1 certification **and delegated authority** issued under this ~~chapter-act~~
 2 does not restrict a **certified** health department from reapplication
 3 for certification.

4 Sec. 4101. (1) Except as provided in sections **3115**, 4102, and
 5 4105, a person shall not operate a food establishment unless
 6 licensed by the department as a food establishment.

7 (2) Separate areas ~~for-of~~ food ~~service or preparation~~
 8 **establishments** located ~~in-on~~ 1 building **premises** and actively
 9 operated under 1 management ~~are-may be~~ considered ~~to-be~~ 1 food
 10 establishment and only 1 license ~~is-may be~~ required, ~~-The director~~
 11 ~~may require separate licenses for these areas if managed separately~~
 12 ~~even though under the same owner.~~ **as determined by the department.**

13 (3) Except as otherwise provided in this act, a city, county,
 14 or other local unit of government shall not adopt or enforce
 15 licensing ordinances or regulations for persons regulated under
 16 this act.

17 Sec. 4105. (1) A person, establishment, or organization that
 18 is 1 or more of the following is exempt from the licensure
 19 requirements under this act:

20 (a) Subject to subsection (2), an establishment licensed under
 21 1 of the following acts while conducting activities within the
 22 scope of that act:

23 (i) Grain dealers act, 1939 PA 141, MCL 285.61 to 285.89.

24 (ii) 1959 PA 228, MCL 286.371 to 286.379.

25 (iii) 1964 PA 158, MCL 290.451 to 290.466.

26 (iv) Grade A milk law of 2001, 2001 PA 266, MCL 288.471 to
 27 288.540.

28 (v) Manufacturing milk law of 2001, 2001 PA 267, MCL 288.561
 29 to 288.740.



1 (b) A person that ~~is offering~~**offers** only whole uncut fresh
2 fruits and vegetables directly to consumers.

3 (c) Consumers or nonprofit cooperatives of consumers in
4 compliance with the nonprofit corporation act, 1982 PA 162, MCL
5 450.2101 to 450.3192, providing products from regulated sources
6 only for their own use.

7 (d) Nonprofit cooperatives in compliance with the nonprofit
8 corporation act, 1982 PA 162, MCL 450.2101 to 450.3192, that are
9 growers selling unprocessed products of their own production or are
10 producers selling unprocessed products of their own production from
11 regulated sources.

12 (e) Retail outlets for the sale of prepackaged honey or maple
13 syrup produced in this state if the outlet is operated by the
14 producer and the processing facility is licensed under this act.
15 Both retail outlets and processing facilities are exempt from
16 licensure under this act for producers with gross sales that do not
17 exceed the gross sale limitation for cottage food products
18 described in section 4102(5) for honey or maple syrup. If both the
19 retail outlet and processing facility are exempt from licensure
20 under this subdivision, the honey and maple syrup must have a label
21 that is substantially similar to the label for cottage food
22 products as described in section 4102(3).

23 (f) A temporary food establishment with no food preparation
24 using only single-service articles and serving only non-
25 potentially-hazardous food or beverage.

26 **(g) A temporary food establishment that meets the following**
27 **requirements:**

28 **(i) Uses only single-service articles.**

29 **(ii) Limits food preparation to the mixing and serving of**



1 lemonade or other nonalcoholic beverages that are not
 2 time/temperature controlled for safety, as that term is defined in
 3 the food code.

4 (iii) Is operated by a minor.

5 (iv) Is located on private property with the permission of the
 6 private property owner or is located at an event held on public
 7 property with the permission of the event organizers.

8 (v) Generates gross sales of \$5,000.00 or less per calendar
 9 year.

10 (h) ~~(g)~~ A retail food establishment that does both of the
 11 following:

12 (i) Only sells prepackaged, non-potentially-hazardous foods.

13 (ii) Offers only an incidental amount of food, such as the sale
 14 of single-service packages.

15 (i) ~~(h)~~ A ~~mobile~~ food establishment, such as an ice cream
 16 truck, that offers only prepackaged, single-serving frozen
 17 desserts.

18 (j) ~~(i)~~ An event not open to the general public held by a
 19 nonprofit trade association representing food establishments,
 20 suppliers, or manufacturers where limited food preparation takes
 21 place for the purpose of advertising, displaying, promoting, and
 22 sampling prepared food.

23 (k) ~~(j)~~ A commercial fishing guide service that serves ~~lunch~~
 24 **food** to a party of not more than 12 clients on or adjacent to a
 25 body of water, river, or stream while pursuing, catching, killing,
 26 taking, or attempting to take fish. As used in this subdivision,
 27 "commercial fishing guide service" means a service provided for a
 28 fee or other valuable consideration, regardless of whether the fee
 29 or other valuable consideration is paid directly or indirectly, to



1 assist another person in pursuing, catching, killing, taking, or
2 attempting to take fish.

3 **(l)** ~~(k)~~—A person that owns or operates a device that dispenses
4 only bottled or canned soft drinks; other packaged nonperishable
5 foods or beverages; or bulk gum, nuts, and panned candies.

6 **(m)** ~~(l)~~—Feeding operations set up in response to an emergency
7 or disaster.

8 **(n)** ~~(m)~~—A person that operates as a food warehouse or food
9 processor, if the food warehouse or food processor contains or
10 handles only uncut fruits or vegetables, or both, and meets all of
11 the following criteria:

12 **(i)** The establishment is owned and operated by the person
13 ~~producing~~ **that produces** the fruits or vegetables, or both.

14 **(ii)** Activities at the establishment are limited to storing,
15 grading, sorting, packing, washing, trimming, and refrigerating.

16 **(iii)** The fruits or vegetables, or both, are primarily from the
17 person's own production, and the balance are products of the same
18 genus or genera from other agricultural producers.

19 **(iv)** The food is not ~~"potentially hazardous food~~
20 ~~(time/temperature a time/temperature control for safety food)"~~
21 **food, as that term is** defined in the food code.

22 **(o)** ~~(n)~~—An individual who operates a location under the
23 requirements of 1978 PA 260, MCL 393.351 to 393.368.

24 **(p)** **An establishment that meets both of the following**
25 **requirements:**

26 **(i)** **Offers only food that is not a time/temperature control for**
27 **safety food, as that term is defined in the food code, and that**
28 **requires minimal preparation, such as coffee, tea, or popcorn.**

29 **(ii)** **Offers the food described under subparagraph (i) only as a**



1 **courtesy to customers at no charge.**

2 (2) Notwithstanding subsection (1)(a), a person that operates
3 as or conducts activities the director considers to be a food
4 establishment must be licensed in the appropriate category under
5 this act.

6 (3) If food **for immediate consumption** is prepared in a food
7 ~~service-establishment licensed under this chapter~~ and the food is
8 transported from the food ~~service-establishment~~ to a fixed
9 temporary serving location, the **fixed temporary** serving location is
10 not required to be separately licensed and is considered an
11 extension of the food ~~service-establishment~~ if no food preparation
12 is conducted at the **fixed temporary** serving location, **the food and**
13 **standard operating procedures are consistent with the procedures**
14 **approved by the local health department or department, as**
15 **applicable**, and the food is transported and served by employees of
16 the food ~~service-establishment~~.

17 (4) If prepackaged food is transported from a food
18 establishment ~~licensed under this chapter~~ to a sales location at a
19 farmers' market, fair, or festival, the sales location is not
20 required to be separately licensed and is considered an extension
21 of the food establishment if the food is transported and sold by
22 employees of the food establishment.

23 (5) If prepackaged food is transported from a food
24 establishment ~~licensed under this chapter~~ to 1 or more vending
25 machine locations by employees of the food establishment and the
26 vending machine or machines are maintained by employees of the food
27 establishment, the vending machine locations are not required to be
28 separately licensed and are considered to be an extension of the
29 food establishment, which must be separately licensed. However, if



1 the food establishment from which the prepackaged food is
2 transported is located in another state, both of the following
3 apply:

4 (a) One of the vending machine locations in this state must be
5 separately licensed as a food establishment.

6 (b) The remaining vending machine locations in this state are
7 not required to be separately licensed and are considered to be an
8 extension of the food establishment under subdivision (a).

9 Sec. 5101. (1) A person shall not do or cause to be done any
10 of the following:

11 (a) Manufacture, sell, deliver, hold, or offer for sale
12 adulterated or misbranded food.

13 (b) Adulterate or misbrand food.

14 (c) Receive in commerce food that is adulterated or misbranded
15 and deliver or proffer the delivery of ~~that~~**the** food for pay or
16 otherwise.

17 (d) Sell, deliver for sale, hold for sale, or offer for sale
18 food unless that person ~~holds a license issued~~**is licensed** under
19 chapter IV.

20 (e) Disseminate a false advertisement concerning food or a
21 food establishment.

22 (f) Refuse to permit entry or evaluation, or to permit the
23 taking of a sample, as authorized by section 2111.

24 (g) Give a false guaranty or undertaking concerning food,
25 unless in good-faith reliance on a guaranty or undertaking to the
26 same effect signed by and containing the name and address of the
27 person from whom the food was received.

28 (h) Remove or dispose of seized or embargoed food in violation
29 of section 2105.



1 (i) Alter, mutilate, destroy, obliterate, or remove all or
2 part of the label or do any other act with respect to a food while
3 the food is held for sale resulting in the food being adulterated
4 or misbranded.

5 (j) Forge, counterfeit, simulate, or falsely represent, or
6 without proper authority use any mark, stamp, tag, label, or other
7 identification device authorized or required by this act or rules.

8 (k) Permit filthy or unsanitary conditions to exist in a food
9 establishment in which food intended for human consumption is
10 manufactured, received, kept, stored, served, sold, or offered for
11 sale.

12 (l) Falsely identify a country, state, or other place of origin
13 of food on a label, tag, or other document with intent to deceive
14 or defraud.

15 (m) Fail to establish or maintain any record or make any
16 report required under this act or the federal act, or refuse to
17 permit access to or verification or copying of any such required
18 record.

19 (n) Interfere with the director ~~in the conduct of his or her~~
20 **conducting the director's** responsibilities under this act.

21 (o) Make a false statement, representation, or certification
22 **verbally or** in any application, report, plan, or other document
23 that is required to be maintained under this act or rules.

24 (p) Remove a tag, seal, or mark placed by the director.

25 (q) Operate without a license, registration, permit, or
26 endorsement.

27 (r) Violate a provision of this act or a rule.

28 (s) Operate as a shellfish dealer without a shellfish dealer
29 certificate.



(t) If the person is a food establishment, permit Michigan ~~bridge card~~ **Bridge Card** access to food assistance program benefits unless the food establishment's inventory records match redemption files for Michigan ~~bridge card~~ **Bridge Card** usage for food assistance program benefits and 1 or more of the following apply:

(i) The food for sale includes, on a continuous basis, at least ~~3-7~~ varieties of foods, **with at least 3 units of each of the 7 varieties of food**, in each of the following 4 staple food groups: ~~and perishable foods in at least 2 of the groups:~~

(A) Meat, poultry, or fish.

(B) Bread or cereal.

(C) Vegetables or fruits.

(D) Dairy products.

(ii) At least 50% of the total ~~dollar amount of all gross~~ retail sales ~~, including food and nonfood items, fuel, and services~~ at the food establishment is from the sale of **eligible food items** in any of the 4 staple food groups.

(iii) At least 84 eligible food items are not expired and offered for sale on a continuous basis.

(2) Each day a violation of this section occurs is a separate violation of this section.

Sec. 6103. (1) The following food establishments are exempt from the requirement for plan review and approval specified in section 8-201.11 of the food code:

(a) A temporary food establishment.

(b) A retail grocery.

(2) The plan review exemption for a retail grocery in subsection (1) does not apply to the operation of a food service establishment within a retail grocery. ~~For purposes of this~~



1 ~~section, a deli within a retail grocery is not considered a food~~
2 ~~service establishment unless it provides seating for the customers.~~